

HOUSE No. 5065

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, February 12, 2026.

The committee on Municipalities and Regional Government, to whom were referred the petition (accompanied by bill, House, No. 1512) of Richard M. Haggerty, David F. DeCoste and Colleen M. Garry relative to the operations of local housing authorities; the petition (accompanied by bill, House, No. 1514) of James K. Hawkins and Colleen M. Garry relative to zoning ordinances in MBTA communities; the petition (accompanied by bill, House, No. 1535) of Bradley H. Jones, Jr., and others relative to triennial reports on the impacts of multi-family zoning in MBTA communities; the petition (accompanied by bill, House, No. 2266) of Paul K. Frost and others for legislation to repeal section 3A relative to MBTA communities; the petition (accompanied by bill, House, No. 2267) of Paul K. Frost and others relative to exemptions from MBTA community designations; the petition (accompanied by bill, House, No. 2285) of Steven S. Howitt relative to establishing a special commission to study the effects of unfunded mandates on municipalities; the petition (accompanied by bill, House, No. 2288) of Bradley H. Jones, Jr. and others relative to MBTA communities; the petition (accompanied by bill, House, No. 2289) of Bradley H. Jones, Jr. and others relative to public safety grant funding for cities and towns for compliance with certain zoning laws; the petition (accompanied by bill, House, No. 2290) of Bradley H. Jones, Jr. and others that municipalities are authorized to petition for exemption from compliance with certain state-imposed housing mandates; the petition (accompanied by bill, House, No. 2291) of Bradley H. Jones, Jr. and others relative to allowing municipalities to appeal zoning provisions under the MBTA Communities Act, so-called; the petition (accompanied by bill, House, No. 2292) of Bradley H. Jones, Jr. and others relative to extending the requirements of the MBTA Communities Act, so-called, to all cities and towns; the petition (accompanied by bill, House, No. 2294) of Bradley H. Jones, Jr. and others relative to voluntary municipal right of first refusal; the petition (accompanied by bill, House, No. 2295) of Bradley H. Jones, Jr. and

others relative to retroactive housing compliance under the MBTA Communities Act; the petition (accompanied by bill, House, No. 2296) of Bradley H. Jones, Jr. and others for legislation to provide recategorization and alternative compliance under the MBTA communities act, so-called; the petition (accompanied by bill, House, No. 2297) of Hannah Kane, James Arciero and others for legislation to require that fiscal notes be attached to legislation providing unfunded mandates on municipal governments; the petition (accompanied by bill, House, No. 2305) of Kathleen R. LaNatra, Colleen M. Garry and Kristin E. Kassner relative to the MBTA Communities Act; the petition (accompanied by bill, House, No. 2308) of Marc T. Lombardo, Colleen M. Garry and John R. Gaskey relative to multi-family zoning in MBTA communities; the petition (accompanied by bill, House, No. 2327) of David Allen Robertson relative to funding for public safety and education for certain Massachusetts Bay Transportation Authority communities; the petition (accompanied by bill, House, No. 2338) of Kenneth P. Sweezey, Patrick Joseph Kearney and others relative to exemptions from MBTA community designations; the petition (accompanied by bill, House, No. 2339) of Kenneth P. Sweezey and others relative to determining if MBTA communities are in compliance with certain community zoning ordinances; the petition (accompanied by bill, House, No. 2340) of Kenneth P. Sweezey and others for legislation to repeal certain provisions of Housing Choice Initiative; the petition (accompanied by bill, House, No. 2343) of Jeffrey Rosario Turco, David F. DeCoste and Colleen M. Garry for legislation to repealing the MBTA communities act, so-called; the petition (accompanied by bill, House, No. 2344) of Jeffrey Rosario Turco, David F. DeCoste and Colleen M. Garry for legislation to require safe harbor exceptions to the multi-family zoning as-of-right in certain MBTA communities; the petition (accompanied by bill, House, No. 2345) of Jeffrey Rosario Turco, David F. DeCoste and Colleen M. Garry that communities of less than two square miles be exempt from the provisions of the the MBTA communities act, so-called; the joint petition (accompanied by bill, House, No. 2355) of Susannah M. Whipps and Joanne M. Comerford that the town of Northfield be authorized to acquire certain property located in the town of Bernardston, for general municipal purpose; the petition (accompanied by bill, House, No. 3997) of Dennis C. Gallagher for legislation to establish the suburban infrastructure fund to help municipalities pay for improvements and upgrades to town-owned roads, bridges and sidewalks; the petition (accompanied by bill, House, No. 4020) of Patrick Joseph Kearney relative to owner occupancy

requirement for accessory dwelling units; the petition (accompanied by bill, House, No. 4021) of Angelo J. Puppolo, Jr., and others relative to municipal housing zoning requirements; and the petition (accompanied by bill, House, No. 4074) of Christopher Richard Flanagan relative to zoning for single family and multi-family housing for veterans, reports recommending that the accompanying order (House, No. 5065) ought to be adopted.

For the committee,

JACK PATRICK LEWIS.

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1 *Ordered,* That the committee on Municipalities and Regional Government be authorized
2 to sit during a recess of the General Court to make an investigation and study of House
3 documents numbered 1512, 1514, 1535, 2266, 2267, 2285, 2288, 2289, 2290, 2291, 2292, 2294,
4 2295, 2296, 2297, 2305, 2308, 2327, 2338, 2339, 2340, 2343, 2344, 2345, 2355, 3997, 4020,
5 4021 and 4074, relative to the MBTA Communities Act and other municipal matters.

6 Said committee shall report to the General Court the results of its investigation and study
7 and its recommendations, if any, together with drafts of legislation necessary to carry such
8 recommendations into effect, by filing the same with the Clerk of the House of Representatives
9 on or before December 31, 2026.